

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 13, 2026, AT 8:30 A.M.

conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Defendant specifically demurs to plaintiff’s first cause of action on the grounds plaintiff has not filed a certificate of merit. Code of Civil Procedure section 411.35 requires in professional negligence actions against a person holding a valid land surveyor’s license, as here, for plaintiff to file and serve a certificate of merit within 60 days after filing a complaint. (Code Civ. Proc., § 411.35, subds. (a)–(b).)

Here, when taking the factual allegations in the complaint as true and reviewing the court record, there are insufficient allegations that plaintiff has timely filed and served a certificate of merit. Accordingly, defendant’s demurrer is sustained with leave to amend. (*Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 360.)

Plaintiff shall file and serve an amended complaint on or before **August 24, 2026**.

10. S-CV-0057330 IN RE THE PETITION OF VARDANYAN, SARA

Petition for Approval of Minor’s Compromise Claim (Lena Eliza Avakyan)

The petition for approval of minor’s compromise claim is denied without prejudice. There is insufficient evidence of good cause alleged for the entirety of the recovery to be awarded to the minor’s mother.

11. S-CV-0057560 DESJARLAIS, RICKY v. CUMMING MANAGEMENT

Defendants’ Demurrer to Plaintiff’s Complaint

Defendants demur to all six causes of action in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the six causes of action alleged. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no

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matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

First Cause of Action—Retaliation in Violation of Labor Code Section 1102.5

To state a cause of action for retaliation in violation of Labor Code section 1102.5, plaintiff must establish “(1) [h]e engaged in a protected activity, (2) h[is] employer subjected h[im] to an adverse employment action, and (3) there is a causal link between the two.” (*Bowen v. M. Caratan, Inc.* (E.D. Cal. 2015) 142 F.Supp.3d 1007, 1030–1031.) However, this cause of action does not create liability against individual defendants. (*Tillery v. Lollis* (E.D. Cal., Aug. 13, 2015, No. 1:14-CV-02025-KJM) 2015 WL 4873111, at *10; *Bales v. County of EL Dorado* (E.D. Cal., Sept. 20, 2018, No. 2:18-CV-01714-JAM-DB) 2018 WL 4558235, at *3.)

When taking the factual allegations in the complaint as true as to defendant Jorge Rojas, the complaint does not allege facts sufficient to state this cause of action against him because there is no individual liability. Accordingly, the demurrer is sustained without leave to amend as to the first cause of action against defendant Jorge Rojas.

When taking the factual allegations in the complaint as true as to defendant Cumming Management Group, Inc., the complaint alleges facts sufficient to state the first cause of action for retaliation in violation of Labor Code section 1102.5. Accordingly, the demurrer is overruled as to the first cause of action against defendant Cumming Management Group, Inc.

Second Cause of Action—Age Discrimination in Violation of the Fair Employment and Housing Act (Government Code § 12940 et seq.)

To state a cause of action for age discrimination in violation of the Fair Employment and Housing Act, plaintiff must establish he “(1) is over the age of 40; (2) suffered an adverse employment action; (3) was performing satisfactorily at the time of the adverse action; and (4) suffered the adverse action under circumstances that give rise to an inference of unlawful discrimination, i.e., evidence that the plaintiff was

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replaced by someone significantly younger than the plaintiff.” (*Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal.App.4th 297, 321.) However, individual supervisory employees cannot be personally liable for discrimination under the Fair Employment and Housing Act. (*Reno v. Baird* (1998) 18 Cal.4th 640, 663.)

When taking the factual allegations in the complaint as true as to defendant Jorge Rojas, the complaint does not allege facts sufficient to state this cause of action against him because there is no individual liability. Accordingly, the demurrer is sustained without leave to amend as to the second cause of action against defendant Jorge Rojas.

When taking the factual allegations in the complaint as true as to defendant Cumming Management Group, Inc., the complaint alleges facts sufficient to state the second cause of action for age discrimination in violation of the Fair Employment and Housing Act. Accordingly, the demurrer is overruled as to the second cause of action against defendant Cumming Management Group, Inc.

Third Cause of Action—Harassment in Violation of the Fair Employment and Housing Act (Government Code § 12940(j))

Government Code section 12940, subdivision (j) prohibits an employer from harassing an employee because of their age. (Gov. Code, § 12940, subd. (j).) Harassment includes “discriminatory intimidation, ridicule and insult that is sufficiently severe or pervasive to alter the conditions of the victim's employment and create an abusive working environment. [Citations.] Moreover, harassing conduct takes place outside the scope of necessary job performance, conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives. [Citation.] Thus, harassment focuses on situations in which the *social environment* of the workplace becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee.” (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 869 [internal quotation marks omitted]; *Reno v. Baird* (1998) 18 Cal.4th 640, 645–46.) Notably, “commonly necessary personnel management actions such as hiring and firing, job or project assignments, office or work station assignments, promotion or demotion, performance evaluations, the provision of support, the assignment or nonassignment of supervisory functions, deciding who will and who will not attend meetings, deciding who will be laid off, and the like, do not come within the meaning of harassment.” (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 64–65.)

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Here, when taking the factual allegations in the complaint as true, plaintiff alleges facts sufficient to state the third cause of action for harassment in violation of the fair employment and housing act against defendants. Accordingly, the demurrer is overruled as to this cause of action.

Fourth Cause of Action—Failure to Prevent Discrimination and Harassment
(Government Code § 12940(k))

The failure to prevent discrimination and harassment is derivative to the second and third causes of action for age discrimination and harassment in violation of the Fair Employment and Housing Act. (Gov. Code, § 12940, subd. (k); *Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1317.) This cause of action does not apply to supervisory employees. (See Gov. Code, § 12940, subd. (k).)

When taking the factual allegations in the complaint as true as to defendant Jorge Rojas, plaintiff does not allege facts sufficient to state this cause of action against him because there is no individual liability. Accordingly, the demurrer is sustained without leave to amend as to the fourth cause of action against defendant Jorge Rojas.

When taking the factual allegations in the complaint as true as to defendant Cumming Management Group, Inc., plaintiff alleges facts sufficient to state the fourth cause of action for failure to prevent discrimination and harassment. Accordingly, the demurrer is overruled as to the fourth cause of action against defendant Cumming Management Group, Inc.

Fifth Cause of Action—Wrongful Termination in Violation of Public Policy

A common law claim for wrongful termination in violation of public policy exists when an employer discharges an at will employee for a reason that violates fundamental public policy. (*Holtzclaw v. Certainteed Corp.* (E.D. Cal. 2011) 795 F.Supp.2d 996, 1021.) The Fair Employment and Housing Act constitutes a public policy for this tort. (*Ibid.*) However, where the underlying Fair Employment and Housing Act claim fails then the wrongful termination in violation of public policy claim fails as well. (*Featherstone v. Southern California Permanente Medical Group* (2017) 10 Cal.App.5th 1150, 1169.) This cause of action does not lie against individual defendants. (*Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 900.)

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When taking the factual allegations in the complaint as true as to defendant Jorge Rojas, plaintiff does not allege facts sufficient to state this cause of action against him because there is no individual liability. Accordingly, the demurrer is sustained without leave to amend as to the fifth cause of action against defendant Jorge Rojas.

When taking the factual allegations in the complaint as true as to defendant Cumming Management Group, Inc., plaintiff alleges facts sufficient to state the fifth cause of action for wrongful termination in violation of public policy. Accordingly, the demurrer is overruled as to the fifth cause of action against defendant Cumming Management Group, Inc.

Sixth Cause of Action—Failure to Indemnify (Labor Code § 2802)

Labor Code section 2802, subdivision (a) requires that “An employer shall indemnify his or her employee for all necessary expenditures or losses incurred by the employee in direct consequence of the discharge of his or her duties, or of his or her obedience to the directions of the employer, even though unlawful, unless the employee, at the time of obeying the directions, believed them to be unlawful.” (Lab. Code, § 2802, subd. (a).)

When taking the factual allegations in the complaint as true as to defendant Jorge Rojas, plaintiff does not allege facts sufficient to state this cause of action against him because defendant Jorge Rojas is not an employer. Accordingly, the demurrer is sustained without leave to amend as to the sixth cause of action against defendant Jorge Rojas.

When taking the factual allegations in the complaint as true as to defendant Cumming Management Group, Inc., plaintiff alleges facts sufficient to state the sixth cause of action for failure to indemnify. Accordingly, the demurrer is overruled as to the sixth cause of action against defendant Cumming Management Group, Inc.

In sum, the demurrer is sustained without leave to amend as to the first, second, fourth, fifth, and sixth causes of action alleged against defendant Jorge Rojas and overruled as to the remainder of the demurrer.

Defendants shall file and serve a responsive pleading on or before **August 24, 2026**.